

title *adverse* to his *cestui que trust* (h). But though he may not claim against his own *cestui que trust*, yet he is not bound to deliver over the property to his *cestui que trust* if he cannot safely do so by reason of notice of title in another which is paramount to the trust (i).

* 26. **Moral rights.**—Trustees would not be justified in doing any act at variance with their trust. [*286]

If, for instance, they honestly believed that property accepted by them in trust for one belonged of right to another, they would not be justified in communicating to such other that he could successfully claim the estate. Trustees have the custody of the property, but do not keep the conscience of their *cestui que trust*.

27. **Impeachable settlements.**—It sometimes happens that circumstances raise a *suspicion* but without any *constat*, that the trust deed is impeachable, as if the trust be created by a father tenant for life and a son claiming in remainder under an appointment in exercise of a special power, and there are grounds for surmising that the appointment was collusive, but the trustee must assume the validity of the trust until it is actually impeached (a).

(h) See *Attorney-General v. Munro*, 2 De G. & Sm. 163; *Stone v. Godfrey*, 5 De G. M. & G. 76; *Ex parte Andrews*, 2 Rose, 412; *Kennedy v. Daly*, 1 Sch. & Lef. 381; *Shields v. Atkins*, 3 Atk. 560; *Pomfret v. Windsor*, 2 Ves. 476; *Conry v. Caulfield*, 2 B. & B. 272; *Langley v. Fisher*, 9 Beav. 90; *Reece v. Trye*, 1 De G. &

Sm. 279; *Newsome v. Flowers*, 30 Beav. 461; *Frith v. Cartland*, 2 H. & M. 417; *Tennant v. Trenchard*, 4 L. R. Ch. App. 537; *Neligan v. Roche*, 7 I. R. Eq. 332.

(i) *Neale v. Davies*, 5 De G. M. & G. 258.

(a) *Beddoes v. Pugh*, 26 Beav. 407.